

Constitution

W2SZ Amateur Radio Club
Rensselaer Polytechnic Institute

Ratified on: 2018-11-13

Preamble

The W2SZ Amateur Radio Club, at Rensselaer Polytechnic Institute, has been formed as a non-profit student activity under the sponsorship of the Student Union at Rensselaer Polytechnic Institute at Troy, New York, in order to promote amateur radio activities as defined in Section 97.1 (Basis and Purpose) of the Rules and Regulations of the Federal Communications Commission. This Constitution is hereby approved as its governing law.

Article I. Membership

I.1 Statements of Equal Opportunity and Hazing

I.1.A Equal Opportunity

It is the policy of the W2SZ Amateur Radio Club to provide, to the maximum extent feasible, equal opportunity to all qualified individuals without regard to race, ethnicity, color, religion, national origin, gender, sexual orientation, or disability for all aspects of the W2SZ Amateur Radio Club's activities.

I.1.B Hazing

Hazing, reckless or intentional endangerment to health, or forced consumption of alcohol or other drugs for the purpose of initiation into or continuing membership of the W2SZ Amateur Radio Club is strictly prohibited.

I.2 Obtaining Membership

According to Rensselaer Union policy, there will be four distinct classes of membership; Voting Members, Regular Student Members, Associate Members, and Volunteer Members.

I.2.A Regular Members

To be eligible for Regular Membership, a person must be a registered student of Rensselaer Polytechnic Institute and have paid the Rensselaer Union Activity Fee for that semester or be the spouse or legal dependent of a qualified person under this paragraph.

The Rensselaer Union Executive Board may verify the eligibility of any member through the Office of the Registrar or Bursar.

I.2.B Voting Members

All "regular" members of the W2SZ Amateur Radio Club shall be granted voting privileges at the second general meeting after they become a member. Each member with voting rights shall have one vote.

I.2.C Associate Members

Any person who does not pay an activity fee at Rensselaer, which includes but is not limited to: part-time students, RPI faculty, staff, alumni, and their spouses. Associate Members may participate in all club activities. Associate Members may not vote, hold office, or be regular committee chairpersons except with special approval of the Rensselaer Union Executive Board.

I.2.D Volunteer Members

Volunteer Members are those who are not eligible to be Regular or Associate Members because they are not affiliated with the Rensselaer Union or Rensselaer Polytechnic Institute. Volunteer Membership must be approved annually by a majority of the Regular Members, including officers, of the club. Volunteer Members must not represent more than five (5%) percent of the total club membership at any time. Volunteer Members may participate in all club activities. Volunteer Members may not vote, hold office, or be regular committee chairpersons except with special approval of the Rensselaer Union Executive Board.

I.2.E Guests

A member's guest is allowed to operate at the club station under the supervision of the member; however the member is responsible for the actions of their guest. A member's guest may not operate any equipment that the member themselves is not authorized to operate. All guests must also sign the building log upon entry of the station. A member bringing a party of more than four (4) people must also seek the permission of an Officer, other than themselves, of the club.

I.3 Other Membership Requirements

I.3.A Becoming a Member

Any person meeting the criteria of any class of membership is eligible to become a member of W2SZ. Said person should approach any executive officer with their request.

I.3.B Dues

All members of the W2SZ Amateur Radio Club will be responsible for paying dues annually in an amount as set by the Executive Committee.

I.3.C Union Guidelines and Standards

All members of the W2SZ Amateur Radio Club must adhere to the Rensselaer Union guidelines, and are subject to all Rensselaer Union and Institute standards and disciplinary procedures.

I.4 Membership Information

The club shall obtain the following information on its members:

1. Preferred first and last name,
2. Rensselaer Identification Number, if applicable,
3. Rensselaer Computer System (RCS) ID, if applicable,
4. E-mail address,
5. Amateur radio license class and callsign, if applicable,
6. Record of payment of appropriate dues and fees, and
7. Any additional information required by the Rensselaer Union Executive Board.

Other information may be collected by the W2SZ Amateur Radio Club as directed by the Executive Committee. Members shall not be required to submit this information as a condition of membership.

All information gathered by the W2SZ Amateur Radio Club of its members other than the names and level of membership shall be confidential and only released to the Rensselaer Union administration staff as required.

I.5 Removal of Membership

I.5.A Removal Conditions

A member may be removed for failure to comply with this constitution or Club policy, violation of the Student Code of Conduct, violation of the policies of the Rensselaer Union Executive Board, or club or Federal Communications Commission regulations.

I.5.B Removal Process

Partial or total membership benefits, and rights, can be removed by vote of at least a majority of the Executive Committee at an Executive Committee meeting if a person has violated club, Rensselaer Union, or Federal Communications Commission regulations.

I.5.C Appeals

Any regular member may appeal their removal by petitioning the Judicial Board of the Rensselaer Union and any other member may appeal their removal by petitioning the Executive Board. The removal remains in effect until reversed.

I.6 Privileges

I.6.A Keys

Any member of the W2SZ Amateur Radio Club desiring a key to the Amateur Radio Station, at Two-Hundred Fifty (250) Sunset Terrace, should approach an Executive Committee member of the club with their request. The Executive Committee will approve or deny the applicant's request with a simple majority vote (3/5). The Executive Committee will base approval for a key on the said members participation in club activities. Under the same process, The Executive Committee may suspend a key from a member. Upon revocation of a key, or denial of a request for a key, thirty days must pass before the said member may renew their request. A key may not be held, under any circumstance, by anyone other than those who have been specifically authorized by the Executive Committee. If such a key is discovered, it shall immediately be taken by the club, and after review of the situation by the Executive Committee the holder may be reported to the proper authorities.

I.6.B Operating

Any member shall be allowed to operate any equipment, other than radio transmitters, at the discretion of the Equipment Manager. A member shall be allowed to operate radio transmitters only after they: **(a)** demonstrate the ability to operate the equipment properly and in a courteous manner, and **(b)** demonstrate the possession of their Radio Operators License, as issued by the governing agency of the country from which their license has been issued, to transmit on the specified band in compliance with all FCC regulations.

I.6.C Miscellaneous

Every member is entitled to receiving copies of all club publications.

Article II. Administration

II.1 Officers

The officers of this club shall be a President, a Vice-President, a Treasurer, and an Equipment Manager. The Executive Committee shall be comprised of these four officers. Eligibility for any office requires that the candidate be a Regular Member in good standing with the club.

If a person may be unable to complete the term of office, they shall inform the club of their inability to complete the term of office before being eligible to hold office.

II.2 Duties And Requirements of Elected Officers

II.2.A President

To be eligible for the office of the President, the candidate must hold a valid Amateur Radio License and must never have had their license revoked. The President shall preside over all club meetings and may call special meetings when they deem it necessary. The President shall be responsible for the orderly conduct and transaction of club business in accordance with this Constitution. The President shall initiate new orders necessary to effect proper and efficient operation of the club. These new orders with approval of three-fifths (3/5) of the Executive Committee become standing rules and bylaws.

II.2.B Vice-President

The Vice-President shall be responsible for the editing and distribution of a monthly newsletter, and for the publicity of the club and its activities. The Vice-President shall assume the duties of the President in their absence.

II.2.C Treasurer

The Treasurer shall be the primary manager of the fiscal matters of the club. The Treasurer shall have an accurate statement regarding the club's financial status at every club meeting. The treasurer shall be responsible for monies and all club purchases. The Treasurer shall retain the right to spend no more than fifty (\$50) dollars of the club's money without further approval. The treasurer shall assume charge of club meetings in the absence of the President and Vice-President.

II.2.D Equipment Manager

To be eligible for the office of Equipment Manager, the candidate must hold at minimum a General Class Amateur Radio Operators license. The Equipment Manager shall be responsible for the maintenance of all club equipment. They shall ensure that only qualified persons operate the club's equipment. The Equipment Manager shall retain the right to suspend the privilege to operate radio transmitters of any club member who uses club transmitters to willfully violate FCC regulations. Any suspension of this kind is subject to the approval of three-fifths (3/5) of the Executive Committee. The Equipment Manager shall establish the requirements for granting privileges to operate club transmitters and other equipment. The Equipment Manager shall ensure that a copy of the W2SZ Station License, in accordance with FCC regulations, is properly displayed at the Station Location.

II.3 Elections, Impeachment and Resignations

II.3.A Elections

Elections must be held at least once per academic year. Elections for each of the four officers; President, Vice President, Treasurer, and Equipment Manager, shall be held during the second meeting of the Fall semester. The Election will be announced to all voting members through mail, or other means, at least two weeks prior. Nominations shall be necessary. A simple majority of the voting members of the club is needed to elect an officer. Ballots will be secret.

If any member suspects that the Election Meeting is not conducted fairly or is conducted with intent to deceive the membership the member should notify the Rensselaer Union Executive Board.

II.3.B Impeachment and Resignation

An officer may be removed from office for failure to perform duties satisfactorily, failure to comply with this constitution or Club policy, violation of the Student Code of Conduct, or violation of the policies of the Rensselaer Union Executive Board.

An Executive Committee officer may be forced to resign if such a decision is agreed upon by a two-thirds (2/3) vote of the total membership, or a three-quarters (3/4) vote of the present voting membership, and by three (3) Executive Committee members. Said officer reserves the right to be present when such a decision is made.

II.3.C Special Elections

In the event of an impeachment of an officer or their permanent vacancy, a special election will be called to elect a new officer.

II.4 Faculty Advisor

The club shall have a faculty advisor who shall act as liaison officer between the club and the administration of the Institute. They shall be elected by a two-thirds (2/3) vote of the present voting membership. A copy of the Constitution shall be kept by the faculty advisor. The club advisor must be a member of the American Radio Relay League.

II.5 Station Trustee

The station trustee (as specified in Section 97.h of the Rules and Regulations of the Federal Communications Commission) shall be the faculty advisor, except when the faculty advisor is not eligible under the above regulations. In such case the executive committee of the club shall elect a qualified member to be the station trustee. The trustee shall be an ex-officio member of the club and of the executive committee.

II.6 Executive Committee

II.6.A Definition

The officers of this club shall form an Executive Committee which shall have authority, as specified in Article II.2 of this Constitution, to make decisions and to act on behalf of the club.

II.6.B Meetings

Executive Committee meetings shall be called by the President.

All executive committee meetings shall be open to the members, except at the discretion of the President with regard to meetings concerning key applications and disciplinary action.

A brief description of the executive meeting shall be given at the following general meeting, provided that they do not occur as a single, unified meeting.

Only the members of the Executive Committee shall be allowed to vote at the Executive Committee meetings; however any member may participate in a discussion on any issue before the executive committee.

II.6.C Powers

The executive committee shall be empowered to act upon all administrative problems consistent with the Constitution, and upon all financial problems not in excess of three hundred dollars (\$300.00) by a simple majority vote.

II.6.D Large Expenditures

All proposed expenditures in excess of three hundred dollars (\$300.00) must be approved by the unanimous vote of the executive committee. Notice of such a financial decision shall be made in the general meeting announcement, and the executive committee shall hear any objections from the membership regarding the proposed expenditure.

II.6.E Budget

The executive committee shall prepare a budget for submission to the Executive Board of the Rensselaer Union to meet deadlines set by same.

II.7 Meetings

II.7.A General Body Meetings

A general body meeting shall be held at least once in each calendar month of the school year. An announcement of a general meeting shall be sent at least one (1) day in advance of such a meeting.

II.7.B Executive Committee Meetings

Executive Committee meetings shall be called by the President at least once per calendar month of the school year, not including academic vacations, at a time agreeable to its members. An announcement of executive committee meetings shall be publicized, and notice shall be served to all members of the executive committee at least twenty-four (24) hours, preceding the meeting.

II.7.C Special Business Meetings

Voting members may call a special business meeting if one-half (1/2) agree that such a meeting is necessary. Notification must be given to the Executive Committee at least one week in advance.

II.8 Committees and Appointees

II.8.A Formation

The President shall reserve the right to appoint members on a voluntary basis to committees created to handle club business on a temporary basis.

The president shall reserve the right to appoint individual members of the club on a volunteer basis to handle specific duties.

Article III. Finances

The Treasurer shall be responsible for all club finances.

III.1 Procedures

The W2SZ Amateur Radio Club of Rensselaer Polytechnic Institute shall follow Rensselaer Union financial policies.

III.2 Dues

The Treasurer shall be responsible for collecting dues from the membership. This should be accomplished through the use of Rensselaer Union accounting department forms or other means, as approved by the executive committee.

Article IV. Policies, Standing Rules, and By-Laws

IV.1 Availability

All policies, standing rules, and By-Laws shall be made available to any Activity Fee paying student or interested member upon request and shall be published wherever this Constitution is also published. This constitution must be published on CMS, the Club website, and on file with the Union.

A copy of the By-Laws must be placed on file with the Rensselaer Union Administration Office within five (5) business days following their approval.

IV.2 Policies and Standing Rules

The Executive Committee may adopt Policies and Standing Rules for the Club that are non-governing but that constitute good operating practice.

IV.3 By-Laws

The By-Laws of the Club shall be approved by a simple majority vote at a General Body Meeting.

Article V. Affiliation

The W2SZ Amateur Radio Club shall have no affiliations or governing relationships with any organization except the Rensselaer Union unless approved by the Rensselaer Union Executive Board.

Article VI. The Constitution, Ratification, and Amendments

VI.1 Supremacy Clause

If any part of this Constitution or the By-Laws violate or contradict the policies of Rensselaer, the Rensselaer Union, FCC rules or standards, or applicable federal, state, or local laws then the contradicting parts of the Constitution or By-Laws are invalid.

If any part of the By-Laws violate or contradict this Constitution then the contradicting parts of the By-Laws are invalid.

VI.2 Ratification

This Constitution shall be effective immediately upon the ratification by a two-thirds (2/3) majority of the members with voting rights and subsequent approval of the Rensselaer Union Executive Board or the properly delegated authority.

VI.3 Amendments

If it becomes necessary that any part of this constitution be changed, or that additions are to be made, a two-thirds (2/3) majority vote of the members with voting rights and subsequent approval by the Rensselaer Union Executive Board or the properly delegated authority is required.

VI.4 Abrogation

This Constitution, upon its adoption, shall abrogate any previous governing documents relating to the Club. This shall not be construed as to deny any office or position to anyone serving out a term elected under a previous constitution.

Article VII. Compliance with Union and Institute Standards

VII.1 Language

The official language of all business meetings shall be English unless, by unanimous vote by all those present at the meeting, an alternative language is preferred.